



MUTUAL NON-DISCLOSURE AGREEMENT

Format No

AF/PUR/F/11

Rev No

00

Rev Date

25.08.2022

THIS NON-DISCLOSURE AGREEMENT is made and entered into on this day of _____ (hereinafter referred to as the "Effective Date") by and between;

Ankit Fasteners Private Limited, a company incorporated under the Companies Act, 1956 and having its Registered Office at # 297, Haragadde Village, Jigani Hobli, Anekal Taluk, Bangalore - 562 106, Karnataka State, India, hereinafter referred to as "the Company" (which expression, unless repugnant to the context, shall mean and include its administrators, successors, sister concerns, group companies and assigns) of the ONE PART;

AND

_____, a company incorporated under the Companies Act, 1956 and having its office and works at _____ and having its Registered Office at _____, hereinafter referred to as "Vendor," (which expression, unless repugnant to the context, shall mean and include its administrators, successors, sister concerns, group companies and assigns) of the OTHER PART.

In this Mutual Non-Disclosure Agreement (hereinafter referred to as the "Agreement"), "the Company" and "Vendor" are individually referred to as "Party" and jointly referred to as "Parties."

Whereas the Company is involved in manufacturing highly specialized fasteners and components for aerospace and automotive applications.

Whereas the Vendor is engaged in the business of _____.

Whereas it is anticipated that, during the course of business between the Parties listed above, it may be necessary for the Parties to exchange certain confidential and/or proprietary information in written, oral, electronic, visual, sample and/or any other form related to their businesses (hereinafter referred to as "Confidential Information") as defined hereunder.

Accordingly, the Parties agree to the following:

1. DEFINITIONS

A. Confidential Information

Confidential Information shall be defined as any information that is disclosed by one Party (hereinafter referred to as the "Disclosing Party") to the other Party (hereinafter referred to as the "Receiving Party"), either directly or indirectly which relates to the business of the Disclosing Party in any form whatsoever, including, but not limited to, in writing, in machine readable or in any other tangible form (including, without limitation, documents, prototypes, samples, media, documentation, discs and code). Confidential Information shall include, without limitation, any materials, trade secrets, intellectual property rights, know-how, formulae, processes, algorithms, ideas, strategies, inventions, data, network configurations, system architecture, designs, flow charts, drawings, proprietary information, business and marketing plans, financial and operational information, pricing of any kind, materials or data relating to the current and/or future business and operations of the Disclosing Party, and analysis, compilations, studies, summaries, extracts or other documentation prepared by the Receiving Party based on information revealed by the Disclosing Party. Confidential Information may also include information disclosed to the Receiving Party by third parties on behalf of the Disclosing Party.

B. Intellectual Property ("IP")

Intellectual Property shall be defined as a number of distinct types of legal monopolies over creations of the mind, both artistic and commercial, and the corresponding fields of law. Under IP law, owners are granted certain exclusive rights to a variety of intangible assets, such as musical, literary and artistic works; ideas,



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discoveries and inventions; and words, phrases, symbols and designs. Common types of IP include copyrights, trademarks, patents, industrial design rights and trade secrets in some jurisdictions.

C. Vendor Property

Vendor Property shall be defined as all Intellectual Property (as defined above) that relates to the business of the Vendor that the Vendor is not paid or otherwise compensated by the Company to transfer.

D. Records

Records shall be defined as notes, sketches, drawings or written information maintained in any other form that may be required by the Company.

2. EXPECTATIONS

A. Confidential Information

The Receiving Party shall limit the disclosure of Confidential Information within its own organization to its directors, officers, partners, members, and/or employees having a need to know such information. The Receiving Party shall not disclose Confidential Information to any third party (whether an individual, corporation, or other entity) without prior written consent from the Disclosing Party.

This Agreement imposes no obligation upon the Parties with respect to any Confidential Information (a) that was possessed before receipt of such information from the Disclosing Party; (b) that is or that becomes a matter of public knowledge through no fault of the Receiving Party; (c) that is rightfully received from a third party not owing a duty of confidentiality to the Disclosing Party; (d) that is disclosed without a duty of confidentiality to a third party by, or with the authorization of, the Disclosing Party; or (e) that is independently developed.

Neither Party has an obligation under this Agreement to purchase any services, goods, or intangibles from the other Party. Furthermore, the Parties acknowledge and agree that the exchange of information under this Agreement shall not commit or bind either Party to any present or future contractual relationship, except as specifically stated herein.

B. Vendor Property

Such information shall remain the Intellectual Property of the Vendor, and the Company shall not stake a claim in those properties in which it has not paid due consideration for the transfer or purchase of the same.

C. Records

The Parties agree to keep and maintain adequate and current records of all inventions and works developed during the tenure of their collaboration. These records shall be available to either Party and shall remain the evidence of the work flow between the Parties at all times.

At the end of the term of this Agreement or upon early termination of this Agreement, the Disclosing Party may request that the Receiving Party either promptly return all records in the Receiving Party's possession that contain, disclose and/or embody any Confidential Information or promptly destroy such information.

3. PROVISIONS

A. Non-Solicitation

Neither Party shall employ, solicit for employment, or attempt to poach any employee of the other Party. Neither Party shall otherwise coerce any employee of the other Party to leave his/her employment at the organization; nor shall either Party recommend any person employed by the other Party for employment during the period of this Agreement and for a period of five (5) years thereafter.

B. Term, Termination and Survival

	MUTUAL NON-DISCLOSURE AGREEMENT	Format No	AF/PUR/F/11
		Rev No	00
		Rev Date	25.08.2022

This Agreement shall be valid for a period of five (5) years from the aforementioned Effective Date

unless the Agreement is terminated. The terminating Party must provide the other Party with thirty (30) days written notice of the reasons for the termination.

Even in the event of termination, the obligations of the Receiving Party under this Agreement, as they relate to Confidential Information that the Receiving Party has previously been given, shall continue for a period of five (5) years after the last business has been conducted between the Parties.

In the event of termination, the Receiving Party understands that it shall discontinue the use of any information obtained from the Disclosing Party. The Receiving Party must return records to the Disclosing Party or destroy them (as outlined in 2. C.).

C. Notices

All notices, requests, demands and other communications under this Agreement, or in connection herewith, shall be through single point contacts from the Company and addressed as follows:

To: Ankit Fasteners Private Limited

Name:

Designation:

Address: # 297, Haragadde Village, Jigani
Hobli, Anekal Taluk, Bangalore – 562 106,
Karnataka State, India
Tel. No.: +91 80 39817900

Fax No.: +91 8110 416898

E-mail: info@ankitfasteners.com

	MUTUAL NON-DISCLOSURE AGREEMENT	Format No	AF/PUR/F/11
		Rev No	00
		Rev Date	25.08.2022

D. Enforcement

If there is a breach or threatened breach of any provision of this Agreement, it is agreed and understood that the non-breaching Party shall have no adequate remedy in money or other damages. Accordingly, the Receiving Party agrees that all of the provisions of this Agreement shall be specifically enforceable by the Disclosing Party against the Receiving Party through injunctive relief granted by a court of competent jurisdiction in Bangalore, India. However, the specification in this Agreement of a particular remedy shall not be construed as a waiver or prohibition of any other remedies in the event of a breach or threatened breach of this Agreement.

All of the provisions hereof shall survive the end of the term of this Agreement. The Receiving Party's responsibility to maintain as private any Confidential Information communicated by the Disclosing Party for a period of five (5) years after the last business conducted between the Parties (as outlined in 3. B.) shall survive that additional time period, as well.

E. Controlling Law and Dispute Resolution or Arbitration

This Agreement is made and shall be construed according to the laws of India, and this Agreement shall be subject to the exclusive jurisdiction of the courts of Bangalore, India. The venue of the arbitration shall be Bangalore, India, and English shall be the language of the arbitration. Any disputes between the Parties shall be resolved by mutual discussions. If the Parties agree, any unresolved disputes shall be subject to resolution by arbitration as per the provision of the Arbitration and Conciliation Act, 1996. The decision(s) of the arbitrators shall be final and binding on the Parties.

F. Severable Terms

The provisions of this Agreement are severable. If a court of competent jurisdiction determines that any provision is invalid, void or unenforceable, that provision shall be modified, to the extent necessary, to make it enforceable. The enduring provisions shall remain in full force and effect.

G. Privacy & Protection of Personally Identifiable Information :

This agreement is made according to the requirements of the Information Security Management System (IS27001). As part of this the personally identifiable information (Like Adhar, Pan Card , Education docs, address proof etc..) of Ankit employees shared for the banking & background verification as part of employment purpose shall not be misused and shall not be disclosed to any other third party without written approval from AFPL HR. In case any misconduct happened from the supplier AFPL shall be free to take legal actions.

IN WITNESS WHEREOF, the Parties have executed this Agreement, which shall be enforced as of the aforementioned Effective Date.

Ankit Fasteners Private Limited

(The Vendor Company)

By:

By: